

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: HON. BENJAMIN T REYES II
HEARING DATE: 02/11/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-00430
CASE NAME: AFONSO INFANTE VS. VANESSA ADORABLE RALLONZA
***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 7, Plaintiff's Motion for Reconsideration. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then this case is dismissed and no CMC will be scheduled.

2. 9:00 AM CASE NUMBER: C25-02393

CASE NAME: TOM SPIES VS. IRA HARRIS

*CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 10. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then the CMC is continued to May 11, 2026 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C25-01776

CASE NAME: JOHN DOE VS. ETHAN BUCKLEY

*CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference(CMC) trails Line 8. The parties and/or counsel are ordered to appear for the CMC following the hearing on the motion. If the tentative ruling is not contested, then the CMC is continued to May 11, 2026 at 8:30 a.m.

Law & Motion

4. 9:00 AM CASE NUMBER: C22-01790

CASE NAME: KATHERINE STAUDT VS. DOES 1 TO 50

HEARING IN RE: MOTION TO QUASH RECORDS SOUGHT IN SUBPOENA OF BUSINESS RECORDS

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Katherine Staudt Motion to Quash or limit records sought in a subpoena *duces tecum* served by Defendant Albertsons Safeway LLC is **denied**.

Background

This is a personal injury action where Plaintiff Katherine Staudt ("Plaintiff") claims that on September 10, 2020, she slipped and fell at the Safeway store operated by Defendant Albertsons Safeway LLC ("Defendant") located at 1355 Moraga Way, Moraga, CA, due to a dangerous condition maintained by Safeway and/or other defendants. She claimed to have sustained significant injuries in that incident.

In Plaintiff's responses to Defendant's first set of form interrogatories, she claims she sustained injuries to her patella and tibia and the tendons in that area as well as a "frozen or locked kneecap." (Despotes Dec. ¶¶ 3, 4; Ex. 2, 3.) She claims her quadriceps and thigh muscles are only partially functional and claims dysfunction and injury to the back of her knee. (Id.) She further claims "aggravation of or injury" to her lumbar spine, gastrointestinal distress, "injury to her psyche" due to

the trauma of these injuries, and “lost time, ability, and functioning in pursuit of personal goals and matters involving loved ones.” (Id.) She claims ongoing, worsening, daily symptoms in the affected areas. (Id.) She discloses treatment at the John Muir emergency department and Muir Orthopedics in Walnut Creek and at Beyond Chiropractic. (Id.)

Plaintiff also makes a loss of past and future earnings claims with “losses in excess of \$150,000.” (Id.) She was or is employed at the Mount Diablo Unified School District. (Despotes Dec. ¶¶ 3, 4; Ex. 2, 3.) She discloses a subsequent injury that occurred on April 20, 14 2021 “based upon unhealed weakened status from prior injury of 9/10/20.” (Id.) She pursued an ICH CIN workers’ compensation claim in connection with this subsequent injury. (Id.)

On October 10, 2025, Defendant pursued a subpoena duces tecum for her medical records from the following entities:

- Mt. Diablo Unified School District -1936 Carlotta Dr., Concord
- LWP Claims Solutions - P.O. Box 349016 , Sacramento
- John Muir Health -1601 Ygnacio Valley Road, Walnut Creek
- Humana Insurance Company c/o CT Corp. - 330 N. Brand Blvd., Suite 700, Glendale
- Beyond Chiropractic -1511 Treat Blvd., Suite 100, Walnut Creek
- Muir Orthopedic Specialists - 2405 Shadelands Dr., Suite 210, Walnut Creek
- Mt. Diablo Unified School District -1936 Carlotta Dr., Concord
- Beyond Chiropractic - 1511 Treat Blvd., Suite 100, Walnut Creek

On October 28, 2026, Plaintiff Katherine Staudt filed a Motion to Quash or limit records sought in a subpoena duces tecum for employment records and billing records related to treatment she received for injuries allegedly caused by the injuries she sustained in this case. The Motion was supported by a Memorandum of Points and Authorities, Declaration of Plaintiff and Notice. Plaintiff generally asserts that she is entitled to privacy regarding her health records, records regarding her worker’s compensation claim, and has already responded to interrogatories supplying information about her injuries.

In opposition, Defendant claims that Plaintiff places her injuries at issue. Accordingly, Defendant maintains that it is entitled to obtain records relevant to Plaintiff’s personal injury and loss of earnings claims by issuing subpoenas to the providers identified in Plaintiff’s discovery responses. Defendant maintains that Plaintiff has made no showing that the subpoenas at issue intrude upon her reasonable expectation of privacy under the circumstances or that such intrusion is “serious.”

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to medical, billing records and worker's compensation records sought, there is no disagreement that Plaintiff's statutorily (Evid. Code, § 990 et seq.) and Constitutionally (Cal. Const., art. I, § 1) recognized rights to maintain the privacy of her medical records is not waived in its entirety by the allegations she has made. (E.g., *Britt v. Superior Court* (1978) 20 Cal.3d 844, 862-864; Also, *In re Lifschutz* (1970) 2 Cal.3d 415; *Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853-1857.) However, to the extent she has placed her physical condition in issue and claims that she has sustained injuries as a result of this alleged incident, she has given up the right to shield from the Defendant her medical records that reasonably relate to the claim she has asserted and for the disclosure of which there is a compelling need that outweighs the plaintiff's interest in preserving her privacy. (*Lantz v. Superior Court*, *supra*, at pp. 1854-1855, 1857.) If Plaintiff also claims that she has sustained additional injuries resulting in a worker's compensation claim that relate back to the slip and fall incident on September 10, 2020, the records relating to that claim are relevant as they are likely to lead to the discovery of admissible evidence in this case. Since there is a dispute concerning not only the extent of Plaintiff's injuries, but their causation, her contention that discovery must be limited to responses to interrogatories is a misunderstanding of the purpose of discovery.

After reviewing the papers submitted by counsel and plaintiff, and after applying the applicable statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion to Quash.

Ruling

Plaintiff Katherine Staudt Motion to Quash or limit records sought in a subpoena *duces tecum* served by Defendant Albertsons Safeway LLC on or about October 10, 2025 is **denied**. The 3rd parties subject to the subpoena *duces tecum* are ordered to produce the records sought within ten (10) days from the date of service of this order.

Defendant's counsel prepare and e-file a proposed order that conforms to this ruling no later than five (5) court days from the date of this hearing, attaching a copy of this tentative ruling.

5. 9:00 AM CASE NUMBER: C23-01402
CASE NAME: QUANTUM INTERNATIONAL LLC VS. DOES 1 TO 10
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY: AMBERWOOD CONCORD HOMEOWNER'S ASSOCIATION
TENTATIVE RULING:

Having received no timely opposition, the demurrer is **sustained** with leave to amend.

6. 9:00 AM CASE NUMBER: C25-00261
CASE NAME: KIKI BROWS VS. RAMANUJAN GROUP LLC
*HEARING ON MOTION IN RE: CONSOLIDATION OF ACTIONS
FILED BY: BROWS, KIKI
TENTATIVE RULING:

Plaintiff Kiki Brows ("Plaintiff") brings the instant motion to consolidate in an effort to consolidate this matter (C25-00261), with a pending unlawful detainer action that was filed by defendant Ramanujan Group ("Defendant") in this same court (*Ramanujan LLC v Kawaldeep Singh Sethi individually and DBA Kiki Brows*, case no. N25-1537).

For the reasons set forth below, the motion to consolidate is **denied**.

Background

Plaintiff and its prior landlord entered into a lease agreement around June 14, 2013. (Motion to Consolidate, p. 3.) Those same parties amended the lease around December 2018. (Opposition, p. 3.) In October 2023, Plaintiff and Defendant (as successor in interest to the prior landlord), entered into a second amended lease extension, which extended the lease until November 2024. (Motion, p. 3; Opposition, p. 3.)

Plaintiff asserts that the lease was renewed once more, and that it made a minimum annual rent payment in reliance on that. (Motion, p. 4.) Defendant disputes this and asserts that it served a notice of termination of lease in March 2025, and that Plaintiff thereafter failed to surrender possession of the property. (Opposition, p. 3.)

On January 29, 2025, Plaintiff filed the initial complaint in this matter. On August 14, 2025, Plaintiff filed a first amended complaint, which asserts claims for breach of contract, fraud, and detrimental reliance. (Plaintiff's First Amended Complaint, ¶¶ 1-32.) On August 4, 2025, Defendant filed the unlawful detainer action. (Defendant's Unlawful Detainer Complaint, ¶¶ 1-19.)

Legal Standard

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning

proceedings therein as may tend to avoid unnecessary costs or delay.” (Code Civ. Proc., § 1048, subd. (a).) The decision to consolidate is left to the discretion of the trial court. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 [“Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court’s decision will not be disturbed on appeal absent a clear showing of abuse of discretion.”].)

The Court in *Askew v. Askew* (1994) 22 Cal.App.4th 942, explained: “A motion to consolidate under section 1048 of the Code of Civil Procedure is predicated on the assumption that two or more actions already ‘involv[e] a common question of law or fact.’ The motion requests the court to exercise its *discretion* to consolidate the actions (the court ‘*may* order a joint hearing or trial of any or all the matters in issue in the actions,’ italics added). Therefore, it is possible that actions may be thoroughly ‘related’ in the sense of having common questions of law or fact, and still not be ‘consolidated,’ if the trial court, in the sound exercise of its discretion, chooses not to do so.” (*Id.* at 964 [italics in original].)

Request for Judicial Notice

Plaintiff asks the Court to take judicial notice of the case files and all filings from the instant civil action and the unlawful detainer action. (Plaintiff RJN, ¶¶ 1-2.) The Court grants the unopposed request, subject to the limitations on judicial notice. (Evid. Code, § 452, subd. (d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice of pleadings extends to the fact of the filings but not the truth or interpretation of the content of the filings to the extent reasonably disputable]; *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-115 [same].)

Notice of Motion Filing Requirement

California Rules of Court, rule 3.350(a), requires the notice for a motion for consolidation to be filed in each case sought to be consolidated. Here, Plaintiff has not filed notice of this motion in the unlawful detainer case. However, the Court will disregard this defect and proceed to the merits of this motion in light of its view that this defect does not affect the substantial rights of the parties. This is because the attorneys in the civil matter are the same as in the unlawful detainer matter and also because Defendant did not raise this issue in its opposition. (Code Civ. Proc., § 475 [“The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings which, in the opinion of said court, does not affect the substantial rights of the parties.”].)

Analysis

Plaintiff argues that the Court should grant its motion to consolidate because not doing so would force it to present its case in the civil matter as a defense in the unlawful detainer action. (Motion, p.6.) “Kiki Brows should not be forced to litigate complex issues of contract law, renewal, ad leasehold interest in the truncated procedures of the unlawful detainer process which are limited to simple disputes of possession. The Civil Matter is complex and making Kiki Brows argue it as a defense in a summary proceeding is the exact type of prejudice contemplated by *Martin-Bragg*.” (*Id.* at pp. 6:28-7:4.) Plaintiff correctly points out that the instant case and the unlawful detainer case involve the same parties, the same lease, the same premises, and the validity of the alleged renewal after

November 30, 2024. (*Id.* at p. 7.) Plaintiff analogizes the situation here with the fact patterns in the cases *Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367 and *Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, and argues that those cases support consolidating the instant matter with the unlawful detainer matter as the issues here are similarly complex. (Motion, pp. 5-7.)

Defendant argues that the civil and unlawful detainer matters are factually different and involve different legal theories. (Opposition, p. 4.) Defendant further argues that the two cases relied on by Plaintiff are distinguishable from the present facts. (*Id.* at pp. 4-5.)

On reply, Plaintiff argues that Defendant only discussed the causes of action in the unlawful detainer and the instant case being different, not the facts, and that Plaintiff would be prejudiced if the unlawful detainer could move forward on its own. (Reply, pp. 2-3.) Plaintiff also argued that there would be no confusion from consolidating. (*Id.* at p. 3.)

The Court notes that the two main cases Plaintiff relies on, *Martin-Bragg v. Moore* (2013) 219 Cal. App. 4th 367, and *Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, both deal with consolidating civil matters containing claims relating to title of real property with unlawful detainers. “The law affords substantial procedural rights to litigants in cases involving adjudication of complex issues of legal and beneficial title to property. Moore’s enjoyment of those rights was compromised by the trial court’s insistence on trying those complex issues using the summary procedures that are approved only for the determination of a landlord’s right to possession in straightforward unlawful detainer proceedings.” (*Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, 394-395.) In *Greenhut*, the court stated, “[d]ue to the complexities of this case and the need to quiet title on the way to determining all of the issues, the most judicious approach would have been a consolidation of the three cases.” (*Greenhut v. Wooden* (1982) 129 Cal.App.3d 64, 69.)

Here, there are no issues involving title to real property, making *Martin-Bragg* and *Greenhut* distinguishable from the instant matter on that basis. Further, Plaintiff only seeks monetary damages in this lawsuit, not declaratory relief, not specific performance of any contract, not possession of any property. (Plaintiff’s First Amended Complaint, pp. 5-6, prayer for relief.) The unlawful detainer, in contrast, seeks possession of the property at issue.

Thus, although the cases have significant overlap—such as whether the lease was renewed and the validity of Defendant’s May 2025 attempt to terminate the lease—they both seek different remedies. This Court feels that the central issue here, whether the lease was renewed or not, and the validity of the alleged termination of the lease, may properly be litigated in an unlawful detainer case, and declines to exercise its discretion to consolidate the two cases at this time.

The Court notes that the pleadings in the instant matter are not yet settled, as Defendant has filed a demurrer and motion to strike that are set for hearing in mid-March. Further development of this case may merit the Court revisiting consolidation at a later date.

Ruling

The Court exercises its discretion to **deny** consolidation for the reasons stated herein, **without prejudice** to renewal of a consolidation motion if subsequent developments warrant.

7. 9:00 AM CASE NUMBER: C25-00430
CASE NAME: AFONSO INFANTE VS. VANESSA ADORABLE RALLONZA
HEARING IN RE: MOTION FOR RECONSIDERATION,RELIEF FROM ORDER
FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Afonso Infante's Motion for Reconsideration of the Court's ruling dated October 9, 2025 sustaining the Defendant Vanessa Adorable Rallonza's demurrer without leave to amend is **denied**.

Background

Plaintiff, Afonso Infante's complaint ("Plaintiff") alleged that, beginning in June 2020, he and defendant, Vanessa Marie Adorable Rallonza ("Defendant") entered into an "exclusivity agreement" by which defendant promised to "remain exclusively sexually involved with Plaintiff." (Complaint, ¶14.) In return, plaintiff promised to pay defendant \$100,000 per month. (*Ibid.*) He paid \$100,000 in cash in June 2020, intended to cover the period July 12, 2020 to August 11, 2020. In September, he paid another \$100,000 via wire transfer, intended to cover the period August 12, 2020 to September 11, 2020. Finally, in October 2020, plaintiff paid \$100,000 via wire transfer, intended to cover September 12, 2020 to October 11, 2020. (Complaint, ¶10.) Defendant breached the agreement because she was cohabitating with, and engaging in a sexual relationship with another individual, a fact she concealed and/or misrepresented. (Complaint, ¶11.) Plaintiff eventually discovered the other relationship and alleges defendant never intended to perform as agreed. (Complaint, ¶¶6-8, 11, 18.) Defendant requested that plaintiff pay the funds into an "irrevocable trust" which plaintiff appears to have interpreted to mean that he would be unable to cease payments. (Complaint, ¶¶6-9, 16.)

Plaintiff brought suit against defendant on February 24, 2025, alleging four causes of action: (1) Breach of Contract, (2) Fraud, (3) Unjust Enrichment, and (4) Restitution. In response, defendant filed the present demurrer, which plaintiff moved to strike. Plaintiff also filed an opposition to the demurrer based on the merits.

On July 23rd, the Court held a hearing on its tentative ruling issued the previous day. The tentative ruling denied plaintiff's motion to strike and continued the demurrer hearing. The continuance was based on the Court's request for additional briefing, and in order to allow additional time for parties to meet and confer. Neither party contested the substance of the ruling, but both stipulated to a different hearing date (September 3, 2025) based on plaintiff's representations that he was scheduled to have surgery.

Defendant's attorney filed a supplemental declaration on July 30, 2025 and a "supplemental demurrer" on August 8, 2025. Plaintiff has not filed any supplemental briefing, though he moved on August 11, 2025 to strike portions of defense counsel's supplemental declaration. That motion has been scheduled for hearing on November 26, 2025.

On September 2nd, through specially-appearing attorney, LoriAnn Owens, plaintiff moved *ex parte* for another continuance based on his unavailability due to being taken into custody in San Mateo County. Judge Weil granted the application and set a new hearing date of October 22nd, but later that day, the

tentative rulings for Department 16 posted for hearings to be held September 3rd. The continuance to October 22nd was noted in the tentative rulings. Defendant's counsel, Elizabeth Bertolino, timely contested the tentative ruling. Both Ms. Bertolino and Ms. Owens appeared on September 3rd to argue. Attorney Bertolino argued the continued hearing should not be set out so far, and that plaintiff had made misrepresentations to the Court, including but not limited to his allegedly having had surgery.

At the September 3rd hearing, the Court re-set the hearing to October 3rd instead of the 22nd, and requested any information concerning the pending criminal complaint. No information was submitted prior to October 3rd related to the criminal charges, but the hearing nonetheless proceeded as scheduled on October 3rd at 1:30 p.m.

On October 3, 2025, Plaintiff's counsel, Ms. Lori Ann Owens appeared by Zoom on behalf of plaintiff, Afonso Infante. Ms. Bertolino appeared in person for defendant, Vanessa Rallanza. Plaintiff's counsel informed the Court she appeared in "limited scope" and not for purposes of arguing the demurrer hearing. She limited her comments to having made unsuccessful efforts to arrange for a remote appearance by plaintiff from the jail. The Court heard argument from Ms. Bertolino, as well as testimony from a witness, Steven Nemec, Chief Administrative Officer of Swift Legal, concerning his contentions that certain documents constitute forgeries by plaintiff. While the latter was heard, the testimony does not relate to the merits of the demurrer and has not been considered with respect to the Court's discussion herein.

Defendant's Counsel represented to the Court and also submitted a declaration stating that Plaintiff had been arraigned on fifty two (52) Felony charges, including felony stalking of Ms. Rollanza, and many felonies related to filing false court documents and forging process server's signatures - other named victims, including process servers used in this case. His custody exposure is significant and Plaintiff is being held without bail, pending his trial. Plaintiff's Counsel, Lori Ann Owens, confirmed that he was incarcerated.

On October 9, 2025, the Court entered an order sustaining Defendant's Demurrer without leave to amend. Now, Plaintiff files this Motion for Reconsideration, among other things, requesting relief under Cal. Code of Civ. Proc. § 1008(a). He also sets for a claim for relief under various parts of the Cal. Code of Civ. Proc. that are inapplicable. (e.g., Cal. Code of Civ. Proc. §§ 473(d) vacatur, 128 (inherent power of the court to effectuate justice), and Local rules which permit omnibus request for relief.) The essence of Plaintiff's motion is that his absence was involuntary; that the Court admitted and/or considered improper evidence, and that the Court was biased. Plaintiff claims that he was incarcerated and was unable to attend the proceedings and denied due process; that he had a lack of notice due to mailing to a P.O. Box, and that there are newly discovered error of laws which permit this court to reconsider its ruling.

Analyses

Under Cal. Code of Civ. Proc § 1008(a):

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order

and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212, Code Civ. Proc., § 1008. “A motion for reconsideration may only be brought if the party moving for reconsideration can offer ‘new or different facts, circumstances, or law which it could not, with reasonable diligence, have discovered and produced at the time of the prior motion. Cal. Code of Civ. Proc. § 1008, subd. (a); see *Jade K. v. Viguri* (1989) 210 Cal. App. 3d 1459, 1467, 258 Cal. Rptr. 907.) A motion for reconsideration will be denied absent a strong showing of diligence.” (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690; *Forrest v. State Of California Dept. Of Corporations* (2007) 150 Cal.App.4th 183, 202 disapproved of and overruled on unrelated grounds in *Shalant v. Girardi* (2011) 51 Cal.4th 1164, 1172 (footnote 3); *New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213; *Baldwin v. Home Sav. of America*. (1997) 59 Cal.App.4th 1192, 1199.)

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law” that (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499.) Disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (*Gilberd v. AC Transit, supra*, 32 Cal.App.4th 1494, 1500.) The moving party’s burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213.)

Applied here, the Court finds that Plaintiff has failed to set forth new or different facts or circumstances or law that would require reconsideration. First, Plaintiff claims that he did not have notice of the continued hearing on the demurrer, as it was served to address listed in his pleadings as the address of record for service in this case. However, he was required to keep the Court apprised of any change of address for service of the Court’s orders or service of process. The record shows that did not file a change of address form when he was being held for pre-trial detention without bail. (He subsequently filed a Change of Address request on December 22, 2025, two months after the hearing.) It is Plaintiff’s responsibility to notify the Court of a change of address. This argument is unavailing and not credible, as Plaintiff admits that he received service of the demurrer through his P.O. Box and had already prepared a declaration in opposition of the demurrer and motion to strike. Moreover, Plaintiff retained Counsel to appear at the hearing on the Demurrer and was on notice of the hearing.

Second, Plaintiff was already incarcerated at the date of the initial hearing of the Demurrer, September 3, 2025 and retained counsel to represent him at the hearing on the demurrer, but limited her role to seeking a continuance. At his request, the Court continued the hearing on the demurrer to October 3, 2025 and ordered Counsel and Plaintiff make arrangements to appear at the continued hearing. Plaintiff, like many incarcerated parties, had retained an attorney to appear on his behalf, and had the right to appear via Zoom. The Court ordered Plaintiff’s counsel to make the necessary arrangements for the custodial facility to allow Plaintiff to have Zoom access and advised her that the Court was willing to sign necessary removal orders to make Plaintiff available for his hearing on

October 3, 2025. Plaintiff, again, did not appear at his hearing and, instead, his attorney appeared, representing that she was again appearing in “limited scope” and her client, Plaintiff, did not authorize to argue against the demurrer. The Court notes that this is the second time that Plaintiff retained counsel for this hearing, but specifically prohibited her from arguing the merits of the case that was already briefed. At the hearing, the Court ruled on the Demurrer, sustaining it without leave to amend. This is not a new fact or new law that requires this Court to reconsider its ruling.

Additionally, Plaintiff sets forth legal arguments that cite to *Marriage of Fletcher* (1996) 8 Cal.4th 67, 80, recognizing “sexless” marriages, and *Marvin v. Marvin* (1976) 18 Cal.3d 660, which purports to confirm that non-marital agreements may be enforceable. None of these cases are new law. Indeed, Fletcher was decided 30 years ago and Marvin was decided 50 years ago. Plaintiff also fails to cite to new facts that which he affirms could not, with reasonable diligence, have discovered and produced at the time of the prior motion. Accordingly, on this argument, plaintiff does not meet the standard set forth in Cal. Code of Civ. Proc § 1008 for reconsideration.

Plaintiff also claims that this judicial officer is biased against him, presumably because the Court had ruled against him. He makes a request for disqualification under Cal. Code of Civ. Proc § 170.1. To the extent that a challenge for cause is being made against this judicial officer, it not effective because it fails to comply with the provisions of 170.1. Moreover, as set forth above, disagreement with a ruling is not a new fact that will support the granting of a motion for reconsideration. (*Gilberd v. AC Transit, supra*, 32 Cal.App.4th 1494, 1500.) And, just because Plaintiff may disagree with the court’s procedural management or evidentiary rulings does not establish bias. See, In *Re Marriage of Tharp* (2010) 188 Cal.App.4th 1295, 1318 [ruling against a party, without more, is not bias]; *Andrews v. Agricultural Relations Bd.* (1981) 28 Cal.3d 781, 795-796 [even erroneous rulings do not establish bias where subject to appellate review].)

Finally, Plaintiff argues that he was deprived of due process because he was unable to secure his appearance to argue against the demurrer on October 3, 2026. Again, the Court continued the hearing on the demurrer twice in order to accommodate Plaintiff’s request. He did not make arrangements to appear via Zoom, and instead sent his attorney, Lori Ann Owens. Here, the Court considers the narrow issue of whether Plaintiff was deprived of due process when he was absent from the hearing, even though his attorney was present on his behalf.

In addressing the issue of due process, the Court of appeal in *In re Axsana S.* (2000) 78 Cal.App.4th 262 demonstrates some useful parallels to the instant proceeding. In *Axana S.*, the incarcerated father claimed a violation of due process when the juvenile court conducted a dispositional hearing on the dependency petition and denied him reunification services, while his attorney was present but he was absent. There, the Court of Appeal held that the father “received meaningful access to the courts through his appointed counsel. In dependency cases, as in other civil cases, personal appearance by a party is not essential; appearance by an attorney is sufficient and equally effective.” (Id. at p. 269; see also *In re Dolly D.* (1995) 41 Cal.App.4th 440, 445.

Applied here, although this is not a dependency case, like the father in *Axsana S.*, Plaintiff claims that he was denied due process by being precluded from making oral argument on the demurrer prosecuted by Defendant. However, his Counsel was present at the hearing. State courts have “repeatedly held that the due process rights of a prisoner who has been prohibited from participating in a custody hearing are not violated where the prisoner was represented by counsel at the hearing

and was neither denied an opportunity to present testimony in some form on his behalf nor denied the opportunity to cross-examine witnesses.” *Cook v. Boyd* (E.D.Pa. 1995) 881 F. Supp. 171, 175; see also *In re T.N.T.* (2002) 258 Ga. App. 396 [574 S.E.2d 444, 446–447].) Likewise, Plaintiff was not denied due process where he retained counsel to represent him at the hearing on the demurrer. The Court did not prohibit Plaintiff’s counsel from arguing at the Demurrer and from otherwise representing Plaintiff as his limited scope counsel. It was plaintiff who chose not to allow his attorney to present arguments on his behalf. Based on behavior demonstrated by Plaintiff in the past, the Court finds that this tactic of retaining counsel and directing counsel not to make arguments is further delay tactics designed to keep Defendant needless engaged in a case that has no merit.

Based on the foregoing, the Court finds that there is good cause to deny Plaintiff’s Motion for Reconsideration.

Ruling

Plaintiff’s Motion for Reconsideration is **denied**. Since the demurrer was sustained without leave to amend, this case is dismissed without prejudice.

8. 9:00 AM CASE NUMBER: C25-01776

CASE NAME: JOHN DOE VS. ETHAN BUCKLEY

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: BUCKLEY, ETHAN

TENTATIVE RULING:

The Court **continues** the hearing on Defendant Buckley’s demurrer to complaint to March 25, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE PETER A. MEYER RE PETER A. MEYER

FILED BY: ZIMMER, INC.

TENTATIVE RULING:

Summary

Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant. The Motion is **granted**. No appearance is required at the February 11, 2026 hearing.

Background

On October 27, 20205, Defendant Zimmer, et. al (“Defendant”) filed an Unopposed Notice of Hearing and Motion for order admitting Peter A. Meyer, Esq. as Counsel *Pro Hac Vice* for Defendant (“Motion”). The Motion was supported by the Verified Application of Peter Meyers, Esq.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Peter A. Meyer, Esq. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Meyer is an attorney licensed to practice in the State of Indiana, and in certain Federal Courts of Indiana, Illinois and Michigan. He is employed by Faegre Drinker Biddle & Reath LLP, and is resident in the firm's Indianapolis office. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

Defendant's motion is **granted**. Peter A. Meyer, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order lodged with the Court on October 29, 2025. No appearance is required at the February 11, 2026 hearing.

10. 9:00 AM CASE NUMBER: C25-02393
CASE NAME: TOM SPIES VS. IRA HARRIS
HEARING IN RE: APPLICATION FOR PRELIMINARY INJUNCTION
FILED BY:

TENTATIVE RULING:

Plaintiffs Tom and Brenda Spies' motion for a preliminary injunction is **denied**.

Background

Defendant Ira Harris represented Plaintiffs the Spies in a civil action in 2006 (*Spies v. Emley*). In June 2006 Harris withdrew from representation of the Plaintiffs due to payment issues. On July 24, 2002, Plaintiffs and Defendant signed a promissory note for \$60,000 which includes \$40,000 in existing lawyer fees, \$10,000 in passed lawyer retainer fees and \$10,000 of passed lawyer fees to be paid on 8-1-06. (Comp. ¶10.) On August 2, 2006, Plaintiff signed a trust deed and assignment of rents to secure the promissory note. (Comp. ¶11.)

Defendant and Plaintiffs ultimately won their case against the Emleys, however, a dispute over payment to Harris arose. The parties went to binding arbitration and ultimately the arbitrator decided that Defendant was owed \$78, 025.91. (Comp ¶16.) The amount was entered as a judgment in court (with interest and costs) on February 6, 2008 as \$83,541.15. (Harris RJN ex. I and Contra Costa Case No. N07-1969). Defendant recorded an abstract judgment on the Danville property (which is Plaintiffs' home).

A second dispute arose between Defendant and Plaintiff regarding The Moore & Baker invoice. Moore & Baker provided expert services in the *Emley* Case and they claimed \$5,250.50 in unpaid fees. Plaintiffs did not pay Moore & Baker and ultimately Defendant paid them and requested reimbursement from Plaintiffs. In ruling on a motion by Plaintiffs, a judge held that the Moore Baker invoice was not part of the fee arbitration. (Harris RJN. Ex. M.) The judge also stated that interpretation of the deed of trust is beyond this court's jurisdiction. The minute order regarding this issue, explained that "The arbitration award... does not require... Harris to reconvey the deed of trust... and it is beyond this Court's jurisdiction in this matter to interpret the scope of the deed on its own terms." (Defendant RJN ex. M.)

Plaintiffs claim that on February 21, 2008, they tendered a cashier's check in the amount of \$83,941.47, which would have been full payment on the judgment, including interest, to Defendant. Defendant points out that Plaintiffs' email conditions the check on Defendant agreeing to release the deed of trust. Plaintiffs claim that Defendant wrongfully rejected this payment because he wanted to be reimbursed for the Moore & Baker invoice and that amount was not included in the check. Plaintiffs argue that Defendant's rejection of full payment stopped the accrual of interest on the judgment pursuant to Civil Code section 1504. Defendant disagrees.

In 2015 and 2016, Defendant used a wage garnishment process to obtain \$33,487.35 towards the judgment. In 2017, Defendant demanded \$99,353.02, which he claims was owed on the promissory note and deed of trust. On June 9, 2017, Defendant obtained a renewal judgment in the amount of \$135,209.84. In January 2025, Plaintiffs tendered a cashier's check to Defendant in the amount of \$50,454.12, which Plaintiffs argue would pay off the original amount of the judgment. In May 2025, Defendant began levying rents from Plaintiffs' rental property in Covina and later filed paperwork in Los Angeles to have the rental property sold.

Plaintiffs have brought this lawsuit against Defendant for (1) quiet title, (2) breach of fiduciary duty, (3) cancellation of instructions and (4) declaratory relief. For the quiet title claim, Plaintiffs seek to have the deed of trust and the abstract judgment removed. For the breach of fiduciary duty claim, Plaintiff alleges that Defendant breached his fiduciary duties at the creation of the promissory note and deed of trust and when he renewed the judgment. For the cancellation of instruments claim, Plaintiffs seeks to cancel the deed of trust and the abstract judgment. Finally, the declaratory relief claim on several issues including the effect of the cashier's check offered to Defendant in February 2008, the need to seek collections from the Moore & Baker invoice in a separate action, and Defendant's duties currently regarding the deed of trust and abstract judgment.

Analysis

In this motion Plaintiffs request a preliminary injunction that prevents Defendant from collecting on the renewed judgment until Plaintiffs' claims can be heard. Plaintiffs argue that this order is needed because Defendant has a hearing to sell Plaintiffs' rental property scheduled in Los Angeles Superior Court (originally scheduled for October 9, 2025, and now set for April 9, 2026). Plaintiffs also want an order preventing Defendant from foreclosing on the deed of trust for the Danville property.

When deciding whether to issue a preliminary injunction, "the trial court must consider 'two

interrelated factors,' specifically, the likelihood that plaintiffs will prevail on the merits at trial, and the comparative harm to be suffered by plaintiffs if the injunction does not issue against the harm to be suffered by defendants... if it does. [Citation.]" (*King v. Meese* (1987) 43 Cal.3d 1217, 1226.)

Further, "An injunction cannot issue in a vacuum based on the proponents' fears about something that may happen in the future. It must be supported by actual evidence that there is a realistic prospect that the party enjoined intends to engage in the prohibited activity." (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) As to the Danville property, there is no evidence that foreclosure is likely to occur. In the supplemental briefs, Plaintiffs admits that there is no imminent threat of foreclosure and Defendant concurs. Unless new evidence of foreclosure proceedings occur, there is no need for a preliminary injunction to prevent foreclosure of the deed of trust. For this reason alone, the request for a preliminary injunction as to the deed of trust is denied. The Court has, however, consider the merits of the request as well.

Probability of Prevailing

Plaintiffs' complaint alleges claims for (1) quiet title, (2) breach of fiduciary duty, (3) cancelation of instruments and (4) declaratory relief. On February 6, 2026, Plaintiffs submitted for filing a first amended complaint that includes a fraud cause of action. The Court has not considered the first amended complaint, which was submitted for filing after all briefing was filed, in its analysis because it would be unfair to Defendant for the Court to consider new issues that were not raised with the moving papers.

One of the main issues in dispute is whether the Moore & Baker invoice was included in the promissory note and deed of trust. The Secured Promissory Note for \$60,000 states that it is for Ira Defendant' representation in the *Spies vs. Emley* action as follows: "\$40,000.00 of existing lawyer retainer fees, \$10,000.00 of passed lawyer retainer fees, and \$10,000.00 of passed-lawyer fees due to be paid on 8-1-06." The Long Form Deed of trust, applies to the Danville property, and states that it is to secure the debt evidenced by the promissory note, referencing the same \$60,000 in lawyer fees. And for "any additional sums and interest hereafter loaned by Beneficiary to the then record owner of the real property, as evidenced by a promissory note or notes..." (Spies dec. ¶¶9-12; Harris dec. ex. B.)

Moore & Baker are listed as certified public accountants and they agreed to do work on the *Emley* case for the Plaintiffs. (Harris dec. ex. C.) Moore & Baker requested payment of \$5,250.50 for their work on the *Emley* case, however, Plaintiffs did not pay Moore & Baker. (Harris dec. ex. D.) Defendant argues the Moore & Baker invoice was included in the promissory note as they were an expert retained for trial. Plaintiffs argue that Moore & Baker's fees were not included in the promissory note and deed of trust.

On this issue, the Court finds that Plaintiffs have shown a probability of prevailing. The promissory note and deed of trust both refer to "lawyer fees". There is no mention of costs or expert fees included in the promissory note or deed of trust. Further, the deed of trust contemplates other loans to the Plaintiffs, but those would be evidenced by a promissory note or other note and Defendant has

not provided any other notes.

The next question is whether the Plaintiffs made an offer for full payment under Civil Code section 1504 such that it would stop the running of interest. Civil Code section 1504 states that “An offer of payment or other performance, duly made, though the title to the thing offered be not transferred to the creditor, stops the running of interest on the obligation, and has the same effect upon all its incidents as a performance thereof.”

“ ‘A tender is an offer of performance made with the intent to extinguish the obligation. (Civ. Code, § 1485.)’ [Citation.] A tender must be one of full performance (Civ. Code, § 1486) and must be unconditional to be valid. (Civ. Code, § 1494)” (*In re Marriage of Green* (2006) 143 Cal.App.4th 1312, 1323.)

“An offer of performance must be free from any conditions which the creditor is not bound, on his part, to perform.” (Civ. Code, § 1494; see e.g. *Still v. Plaza Marina Commercial Corp.* (1971) 21 Cal.App.3d 378, 385 [an offer to pay on the complaint while reserving the right to later request an offset of that amount should the cross-complaint prevail at trial was not an unconditional tender]; *Schiffner v. Pappas* (1963) 223 Cal.App.2d 526, 530 [a tender of the amount owed under a contract was not unconditional where it included a demand that the contract be reinstated and there was no argument that the other side was obligated to reinstate the contract].)

Here, Plaintiffs provide evidence that they prepared a cashier’s check and offered to bring it to Defendant in exchange for release of the lien and the deed of trust. Defendant refused to release the deed of trust, stating that the Moore & Baker invoice was secured by the deed of trust and remained unpaid. (Spies dec. ¶¶18-21 and exs. A and B; Harris dec. ex. J.) Defendant emailed Plaintiffs that he would provide a satisfaction of judgment and release of lien if Plaintiffs brought him a cashier’s check tomorrow (February 20). Plaintiffs state that they tendered the cashier’s check on February 21, but Defendant refused to accept the check. (Speis dec. ¶20 and 21 and ex. B.) Defendant states that he did not receive the check in his office as requested and followed up with an email on February 22. (Harris dec. ¶10 and ex. K.)

Here, Plaintiffs offered to pay the full amount of the judgment but requested a release of the lien (or judgment) and also release of the deed of trust. The Court finds that Plaintiffs have shown a probability of prevailing on their theory that the deed of trust secured the same amounts owed in the judgment and that the Moore & Baker invoice was not covered by the deed of trust. Thus, there is a reasonable argument that Plaintiffs’ request for release of the deed of trust as part of their offer to pay the judgment was not an improper conditional request to which Defendant was not bound to perform. Thus, there is at least an argument that Plaintiffs’ offer to pay the judgment in exchange for a release of lien and deed of trust was not an improper conditional tender.

Defendant argues that Plaintiffs have not shown that their offer to pay was legitimate because they have not shown that they had the funds available. “An offer of performance is of no effect if the person making it is not able and willing to perform according to the offer.” (Civ. Code, § 1495.) Defendant points out that the cashier’s check was not dated until February 21, which is two days after the email exchange. This raises a potential issue on whether Plaintiffs actually had the funds available

on February 19, but it is insufficient to defeat Plaintiffs' statement that they had the money and made a tender to Defendant.

The Court finds that Plaintiffs have shown some probability of prevailing on their theory that they complied with Civil Code section 1504 and stopped the running of interest on the judgment.

The problem for Plaintiffs, however, is it is not enough to show that they might be right some of their theories, they need to show that they have a probability of prevailing on one of the claims in their complaint. Here, there are two related issues that form the basis of Plaintiffs' claims: (1) is the deed of trust on the Danville property still valid and enforceable? And (2) is the amount of interest in the Harris judgment correct and thus enforceable?

Defendant raises several affirmative defenses that raise doubts about whether Plaintiffs can prevail. Defendant argues that Plaintiffs' claims are barred by the statute of limitations. Plaintiffs decided not to respond to this argument on the merits. Defendant shows that the breach of fiduciary claim is time barred. Breach of fiduciary duty has a 3 or 4 year statute of limitations and here the claim is based on Defendant's actions in 2006 to 2008. (Code of Civil Procedure sections 338(d), 343.). For the purposes of this motion, the Court finds that Plaintiffs' breach of fiduciary duty claim regarding the creation of the deed of trust is time barred. Similarly, the cancellation of instruments statute of limitations is also 3 or 4 years and that claim is likely expired at least as to the renewed judgment claim which occurred in 2017. Thus, as to those claims, Plaintiffs have not shown a probability of prevailing on the merits.

The quiet title claim, however, requires a different analysis. Plaintiffs are not claiming that the deed of trust was improperly recorded, only that it is no longer valid. The Court is not convinced that the quiet title claim as to the Danville property is expired. Plaintiffs argue that the promissory note was at zero when it was given to Defendant because Plaintiffs had paid all amounts due at the time. (Spies dec. ¶¶9-12.) While Plaintiffs may be able to prove that the past due attorney fees were at zero when the promissory note was given to Harris to record, they have not done so here. Further, the promissory note and deed of trust included future fees for work on the *Emley* case. Ultimately, Defendant then obtained a judgment after a fee arbitration award for the unpaid fees in the *Emley* case. Assuming, that the amount secured by the deed of trust was covered by the judgment, Plaintiffs has not paid the entire judgment yet. Thus, Plaintiffs have not shown that they have paid the debt that was secured by the deed of trust. Therefore, they have not shown a probability of prevailing on this theory for quiet title. To the extent the cancellation of instruments claims is not time barred because it is based on more recent theories regarding payment of the debt, it fails for the same reasons as the quiet title claim.

In requesting supplemental briefs, the Court requested briefing on whether the fee arbitration award and later the judgment addressed the same debt as the deed of trust and if so, would the deed of trust no longer be enforceable. Upon further review, this theory was not included in the claim for quiet title and therefore whether or not the entry of judgment voids or nullifies the deed of trust is not currently before the Court.

Defendant argues that collateral estoppel prevents Plaintiffs from claiming that the offer of payment on the judgment was both a satisfaction of the judgment and the deed of trust. Collateral estoppel

can be used to show that the Moore and Baker invoice was not included in the fee disputes and thus, not included in the judgment. Also, in entering the judgment, the Court stated that the interpretation of the deed of trust was beyond the scope of the judgment, but that ruling did not interpret the deed of trust. Presented with a quiet title action, the Court can now decide the deed of trust issue.

As to whether the judgment amount is correct, Plaintiffs point to their declaratory relief claim (as noted above, their fraud claim is not properly before the Court). The Court is not convinced that Plaintiffs can attack the judgment amount in this case through a declaratory relief claim.

Code of Civil Procedure section 683.170 provides a method for a judgment debtor to challenge the interest on the renewed judgment in that action. It must be brought within 60 days, but is not the exclusive remedy. Section 683.170 appears to require such a challenge to be brought in the case where the judgment exists. Further, the 60 day deadline has long passed. Plaintiffs argue that they should be allowed to challenge the amount of interest in this case based on equitable procedures, but they provide no case or statute that would allow this challenge here. Thus, Plaintiffs have not shown that they have a right to challenge the interest in renewed judgment in this case.

The Court finds that Plaintiffs have not shown a probability of prevailing on any of their claims and therefore the Court cannot issue a preliminary injunction. (*Butt v. State of California* (1992) 4 Cal.4th at 678 [A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.].)

The parties' requests for judicial notice are granted as appropriate and unopposed.

11. 9:00 AM CASE NUMBER: L24-03854

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. KELI UPDEGRAFF

***HEARING ON MOTION IN RE: SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Summary

Plaintiff JP Morgan Chase's Motion to Set Aside Dismissal and to Enter Judgment under Stipulation pursuant to Cal. Code of Civ. Proc § 664.6 is **granted**. The Court will execute the Proposed Order lodged November 14, 2025. No appearance is required at the hearing on February 11, 2026.

Background

On September 19, 2025, Plaintiff JP Morgan Chase ("Plaintiff") filed a Motion to Set Aside Dismissal and to Enter Judgment Under Stipulation against Defendant Keli Updegraff ("Defendant"). The Motion was supported by a Memorandum of Points and Authorities, Declaration of Counsel Brian Langedyk, Notice, Amended Notice, and a Proposed Order. Proof of service evidences service to Defendant on September 19 and November 25, 2025.

In this debt collection case, both parties agreed to the terms of stipulation memorializing a settlement agreement outside of court and requested that the court retain jurisdiction to enforce the terms of the agreement if the Defendant breached the terms of the settlement agreement. Defendant has defaulted on the payment arrangement under the stipulation agreement. The business records of Plaintiff's Counsel indicate that the last payment was received on February 27, 2025. Plaintiff now seeks to have the dismissal set aside and judgment entered, as agreed by the parties.

Analyses

Code of Civil Procedure § 664.6 provides that if parties to a pending litigation stipulate, in writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment under the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. "In a writing signed by the parties outside the presence of the court..." means that the litigants agreed to the settlement in the same manner and the settlement agreement may be enforced against all parties. *Elyaoudayan v. Hoffinan*, (2003) 104 Cal.App. 1421, 1428.

Additionally, California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure to timely oppose this Motion is a deemed to be Defendant's consent to the granting this motion. The Court finds that Defendant consents to the entry of judgment against her consistent with the terms of the settlement agreement.

Ruling

Plaintiff's Motion is **granted**. The Court will execute the Proposed Order lodged November 14, 2025. No appearance is required at the hearing on February 11, 2026.

12. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: SHANNA FARRELL'S CROSS COMPLAINT
FILED BY: FACCHINI, PRIMO
TENTATIVE RULING:

Before the Court is Cross-Defendant Primo Facchini ("Cross-Defendant" or "Facchini")'s Demurrer. The Demurrer relates to Cross-Complainant Shanna M. Farrell ("Cross-Complainant" or "Farrell")'s

Cross-Complaint for (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

Cross-Defendant demurs to the Cross-Complaint on several grounds, including uncertainty, failure to allege facts sufficient to state a cause of action, and that there is another action pending between the same parties on the same cause of action. (Code Civ. Proc., § 430.10(c), (e), and (f).)

On its own motion, the court consolidates this action with C22-02585 for all purposes. (See Code Civ. Proc. § 1048, subd. (a); *Nissan Motor Corp. v. Superior Court* (1992) 6 Cal.App.4th 150, 154 [court ordered consolidation of three actions on its own motion].) From the Court's perspective, separate cases are inefficient and could lead to conflicting orders. (*Schneider v. Vennard* (1986) 183 Cal.App.3d 1340, 1350 ["duplicative litigation of the same issue does not serve the public interest"].) As the instant case has the earlier file date, it will serve as the lead case.

For the following reasons, the Demurrer is **overruled-in-part** and **sustained-in-part**.

Request for Judicial Notice

Cross-Defendant requests judicial notice of Shanna M. Farrell's Cross-Complaint in case no. C22-02585, the Cross-Complaint in this action, and the Cross-Complainant's declaration in support of her motion to expunge lis pendens filed on September 30, 2024. Cross-Defendant also requests judicial notice of "[t]he fact that the Rheinheimer Cross-Complaint is duplicative of the Nist Cross Complaint insofar as the former is on the same cause of action between the same parties as the latter (Farrell and Facchini) and because each of these pertain to the Property, the Renovations, the Defective Work (as these terms are defined in both the Rheinheimer Cross-Complaint and the Nist Cross-Complaint) and the attendant damages allegedly caused by Facchini."

The request is **granted-in-part** and **denied-in-part**.

While the Court takes judicial notice of the documents, it does not take notice of the contested facts therein. "Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable." (*Unruh-Haxton v. Regents of University of California* (2008) 162 Cal.App.4th 343, 364.)

Furthermore, the "fact" that the instant Cross-Complaint and the Rheinheimer Cross-Complaint are duplicative is clearly in dispute.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of

contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Brief Factual Background

The Court is familiar with the background facts of this case. This is a dispute between neighbors over Plaintiffs’ deeded utility easement and the water well to which the easement grants access, both of which are located on Defendants’ property. The underlying Fourth Amended Complaint in this action alleges that in fall of 2021, Defendants commenced construction on their property that spilled onto Plaintiffs’ non-exclusive utility easement. (4AC at ¶ 23.) The underlying Fourth Amended Complaint further alleges that Farrell supervised construction activities that “substantially destroyed the [easement] road” and caused an accumulation of tree logs, weeds, tree branches, several inches of mud, discarded fencing panels and other debris on the easement road and adjacent to Plaintiffs’ well. (4AC at ¶¶ 31, 34-35.)

Farrell’s Cross-Complaint against the Nists and the contractors who performed construction activities on her property; generally, Farrell alleges that Facchini and others “recklessly cut down trees on and around the Property” without her permission (XC at ¶ 18(a), “stored junk, vehicles, and equipment at the Property” without her knowledge or consent (XC at ¶ 18(b), and caused damage to the Property in removing vehicles and equipment from the property. (XC at ¶¶ 21(a), (b).) The allegations of the Cross-Complaint do not generally differentiate between the Nist Cross-Defendants and the contractor Cross-Defendants.

Analysis

Abatement

A special demurrer to a complaint may be brought on the ground that another action is pending between the same parties on the same causes of action. (C.C.P. § 430.10(c); see also *People ex rel. Garamendi v. American Autoplan, Inc.* (1993) 20 Cal.App.4th 760, 770.) Although the existence of another substantially similar action will rarely appear on the face of a pleading, a demurrer on this ground may be based upon judicially noticed facts. (See *Branson v. Sun-Diamond Growers* (1994) 24 Cal.App.4th 327, 336 n.2; *Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 191-192.) The other pending action must involve the same parties in the same relationship, that is as plaintiff or defendant (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 789), and must involve the identical cause of action in both suits such that a judgment in the first would be res judicata on the claim in the second (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384). However, abatement is required (or mandatory) only where the multiple actions are pending in courts of the same state. (*Leadford v. Leadford* (1992) 6 Cal.App.4th 571, 574.)

A plea in abatement is disfavored, but it will be successful if “(1) That both suits are predicated upon the same cause of action; (2) that both suits are pending in the same jurisdiction; and (3) that both suits are contested by the same parties.” (*Conservatorship of Pacheco* (1990) 224 Cal.App.3d 171, 176.) Moreover, in order to qualify as “another action pending,” first, the parties must stand in the same relationship (i.e., plaintiff or defendant) in both suits. (*Plant Insulation Co. v. Fibreboard Corp.* (1990) 224 Cal.App.3d 781, 789.) Second, the identical cause of action must be involved in both suits, so that a judgment in the first action would be res judicata on the claim in the present lawsuit. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) The fact that some of the same issues are involved so that a finding in either case would give rise to collateral estoppel in the other is not

enough if in fact two different causes of action are involved. (*Id.*) Further, courts have concluded that the fact that the same evidence tends to prove both causes is not enough if the causes of action are different. (*Conservatorship of Pacheco*, 224 Cal.App.3d at 176.)

Whether the causes of action are identical involves a comparison of the facts alleged which show the nature of the invasion of plaintiff's primary right. (*Bush v. Superior Court* (1992) 10 Cal.App.4th 1374, 1384.) A plea in abatement may only be maintained where a judgment in the first action would be a complete bar to the second action. (*Plant Insulation Co., supra*, 224 Cal.App.3d at 787-88.) A plea in abatement is generally disfavored. (*Williams v. State of California* (1976) 62 Cal.App.3d 960, 964.)

Cross-Defendant's argument under Code Civ. Proc. § 430.10(c) arises out of Cross-Complainant's prior Cross-Complaint in Case No. C22-02585 *Rheinheimer v. Farrell, et al* (Rheinheimer Cross-Complaint) filed on March 18, 2024. That Cross-Complaint alleges the following causes of action against Facchini: (4) breach of oral contract, (6) negligent misrepresentation, (7) intentional misrepresentation, (8) fraud, (15) equitable estoppel, (16) promissory estoppel, (17) damage to real property, (19) trespass, (20) negligence – construction defect, (21) violation of Bus. & Prof. Code § 7160, (22) Violation of Bus. & Prof. Code § 7031, (23) contribution, (24) equitable indemnity, (25) unjust enrichment, (26) accounting, and (27) declaratory relief.

Farrell filed the Cross-Complaint in this action on July 17, 2025, alleging fifteen causes of action against Facchini: (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

The Court notes that there is not complete overlap between parties and causes of action, although substantively they all arise out of the same set of underlying facts with respect to Facchini—specifically, his renovation work on Farrell's property. That said, the Cross-Complaint in this action adds additional Cross-Defendants Daniel Jensen and Leroy Galvin, whom the Cross-Complainant collectively refers to along with Facchini as "Unlicensed Contractors."

Cross-Defendant invites the Court to compare the Rheinheimer Cross-Complaint with the Cross-Complaint in this action, but other than to argue that the causes of action in each against Facchini "pertain to the Property and contend that Facchini was hired to perform the Renovations, which he improperly performed, thereby resulting in the Defective Work," he does not provide a "primary right" analysis at the outset that would allow the Court to conclude that the same injury is alleged in the Rheinheimer Cross-Complaint as the instant Cross-Complaint. Though the disputes are clearly related (and the Court has moved to consolidate the two actions), there does appear to be some nuance between the predicate facts in Rheinheimer and here. For example, the allegations in the Rheinheimer action are focused on Facchini's contract with Farrell to perform renovations while in the instant case the allegations include the contention that Facchini and the other contractor Cross-Defendants caused damage to the Farrell's property and the Nists' easement. Facially those would appear to be different (though related) injuries. On reply, Cross-Defendant argues that "Farrell's primary right was that of having work performed to the applicable standard, with Facchini's duty being that of performing such work per the agreement and said standard." (Reply at 7:28-8:2.) The

Court is not persuaded by this analysis and cannot conclude that the two Cross-Complaints arise out of the same primary right.

The Demurrer on the grounds of abatement is **overruled**.

Statute of Limitations

Next, Cross-Defendant demurs to Farrell's second through ninth causes of action pursuant to Code of Civil Procedure section 430.10(f) on the grounds that they are barred by the applicable statutes of limitations. Cross-Defendant's argument is predicated on his request for judicial notice, which the Court has denied in part (as discussed above).

The running of the statute must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint might be time barred. (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2010) 48 Cal.4th 32, 42; *Stueve Brothers Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 321.) Here, nothing on the face of the Cross-Complaint appear "clearly and affirmatively" to bar the claims based on the statute of limitations.

Furthermore, as Farrell notes in opposition, the Cross-Complaint in this action alleges retaliation subsequent to breach of contract (See XC at ¶¶ 19,20); even if the Court were to take judicial notice of a specific date of breach in December 2022, there remains the possibility of later conduct which would bring Farrell's claims within their respective statutes of limitation.

While the Cross-Complaint may be vulnerable to a motion for summary judgment on the grounds that its causes of action are barred their respective statutes of limitations, the Court cannot conclude at this stage of the proceedings that they are conclusively time-barred. The Demurrer on the grounds of the statute of limitations is **overruled**.

Uncertainty

Next, Cross-Defendant demurs to the Cross-Complaint on the grounds that its lack of temporal context renders it fatally uncertain under Code of Civil Procedure section 430.10(e). (Demurrer at 14:9-16 [citing *Miller v. Brown* (1951) 107 Cal.App.2d 304, 307].)

As a threshold issue, the Court notes that uncertainty is a disfavored ground for demurring to a complaint. (See, e.g., *Khoury v. Maly's of California* (1993) 14 Cal.App.4th 612, 616; 1 Weil & Brown, Civil Procedure Before Trial (The Rutter Group 2011) § 7:84, p. 7(l)-39.) A demurrer for uncertainty generally will be sustained only when the complaint is such that the defendant cannot even determine what it must respond to. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

Furthermore, Cross-Defendant's reliance on *Miller* is inapt. *Miller* held that when there are ambiguous statements as to the date of an alleged indebtedness, a special demurrer may be sustained on that ground. Unlike the plaintiff in *Miller*, Farrell has not obscured the theory on which she premises her claims, making it difficult to identify the applicable statute of limitations. Indeed, as noted by Facchini on reply, Farrell's second through ninth causes of action each have specific limitations statutes under the Code of Civil Procedure. Cross-Defendant has not provided any authority, and the Court is not aware of any, that requires temporal specificity to the degree

advocated by Cross-Defendant.

The Demurrer on this ground is **overruled**.

Indemnity Claims

Cross-Defendant demurs to Cross-Complainant's indemnity claims (contribution, equitable indemnity, implied indemnity, and comparative indemnity) on the grounds that they are "redundant." (Dem. at § III(E).) Cross-Complainant has not responded to these arguments in opposition. Though the Court has doubts about the merits of Cross-Defendant's arguments, Cross-Complainant's failure to oppose them is a tacit admission of their merit.

The Demurrer to the causes of action for contribution, equitable indemnity, implied indemnity, and comparative indemnity is **sustained**, with leave to amend.

Declaratory Relief

Similarly, Cross-Defendant demurs to Cross-Complainant's claim for declaratory relief on the grounds that it is duplicative of her indemnity claims. Cross-Defendant also demurs to this cause of action on the grounds that declaratory relief is not available to remedy past conduct. Cross-Complainant did not oppose these arguments.

The Demurer to the declaratory relief cause of action is **sustained**, with leave to amend.

13. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
HEARING ON DEMURRER TO: SHANNA FARRELL'S CROSS-COMPLAINT
FILED BY: NIST, WILLIAM G
TENTATIVE RULING:

Before the Court is Cross-Defendant William G. Nist and Mari K. Nist (collectively, "Cross-Defendants" or "the Nists")'s Demurrer. The Demurrer relates to Cross-Complainant Shanna M. Farrell ("Cross-Complainant" or "Farrell")'s Cross-Complaint for (1) trespass to timber (Civ. Code § 3346), (2) damage to real property, (3) trespass to property, (4) nuisance, (5) interference with easement, (6) negligence, (7) negligence (tort of another), (8) trespass to chattels, (9) unjust enrichment, (10) unlawful business practices (Bus. & Prof. Code § 17200), (11) contribution, (12) equitable indemnity, (13) implied indemnity, (14) comparative indemnity, and (15) declaratory relief.

Cross-Defendants demur to all but the thirteenth cause of action pursuant to CCP § 430.10(e).

For the following reasons, the Demurrer is **sustained-in-part** and **overruled-in-part**.

Analysis

(1) trespass to timber (Civ. Code § 3346)

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to

state a claim.

“‘Trespass is an unlawful interference with possession of property.’ The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant’s conduct was a substantial factor in causing the harm. (See CACI No. 200[2].)” (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 261-262, internal citation omitted.) Where the trespass results in damage to timber, Civil Code Section 3346 provides for enhanced damages.

The Cross-Complaint alleges that (1) “[a]t all times relevant to this action, Farrell owned, held an equitable interest in, occupied, or controlled the property” (XC at ¶ 34), (2, 3) “Cross-Defendants and ROES 1 – 50 intentionally, recklessly, or negligently entered the Property and cut down or damaged trees located on the Property without Co-Owners’ permission and/or exceeding the scope of any permission” (XC at ¶ 36), and (4,5) “Farrell was harmed by these actions of Cross-Defendants and ROES 1 – 50 in damaging the trees on the Property which was a substantial factor in causing Farrell’s harm.” The predicate factual allegations include allegations that the Nists have “unlawfully cut Cross-Complainant’s trees on Cross-Complainant’s Property” (XC at ¶ 4) and generally that “Cross-Defendants and ROES 1-50 intentionally and recklessly cut down trees on and around the Property without Co-Owners’ permission.” (XC at ¶ 18(a).)

These allegations are sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(2) damage to real property

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to state a claim.

“‘[A] cause of action for damage to real property accrues when the defendant’s act causes “immediate and permanent injury” to the property or . . . when there is “[a]ctual and appreciable harm” to the property.’” (*Stofer v. Shapell Industries, Inc.* (2015) 233 Cal.App.4th 176, 189.)

Here, the Cross-Complaint alleges that the Cross-Defendants “repeatedly dumped debris, junk, and soil upon the Property” (XC at ¶ 18(c)) which caused damage to the Property and that the Cross-Defendants “dragged shipping containers across the Property which has caused damage to the Property”. Though undifferentiated with respect to the Nists and the Contractor Defendants, the Cross-Complaint alleges sufficient facts to state a claim for damage to real property.

The Demurrer to this cause of action is **overruled**.

(3) trespass to property

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to state a claim.

The elements of trespass are: (1) the plaintiff’s ownership or control of the property; (2) the defendant’s intentional, reckless, or negligent entry onto the property; (3) lack of permission for the

entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm. (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262.)

The Cross-Complaint specifically alleges that "the Nists have dumped debris on Cross-Complainant's Property, unlawfully cut Cross-Complainant's trees on Cross-Complainant's Property" and "damaged the bridge on Cross-Complainant's Property, damaged Cross-Complainant's fences and personal property located at the Property[.]" (XC at ¶ 4.) The Cross-Complaint otherwise adequately alleges the general elements of trespass to property: (1) Farrell owns the Property (XC at ¶ 1), (2) Cross-Defendants intentionally, recklessly, or negligently entered the Property (*id.* at ¶ 45), (3) Farrell did not give permission for Cross-Defendants to enter the Property and/or Cross-Defendants exceeded the scope of their authorization in entering the Property (*id.* at ¶ 46), (4) Cross-Defendants harmed the Property through leaving debris and equipment upon the Property (*id.* at ¶ 47), and (5) Cross-Defendants' conduct was a substantial factor in causing Farrell's harm (*id.* at ¶ 48.).

The Demurrer to this cause of action is **overruled**.

(4) nuisance

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to state a claim.

"Civil Code section 3479 defines a nuisance as '[a]nything which is injurious to health, or is indecent or offensive to the senses, or an obstruction to the free use of property, so as to interfere with the comfortable enjoyment of life or property.'" (Stoiber v. Honeychuck (1980) 101 Cal.App.3d 903, 919.)

"The elements of an action for private nuisance are: First, the plaintiff must prove an interference with his use and enjoyment of his property. Second, the invasion of the plaintiff's interest in the use and enjoyment of the land [must be] substantial, i.e., that it cause[s] the plaintiff to suffer 'substantial actual damage. Third, [t]he interference with the protected interest must not only be substantial, but it must also be unreasonable, i.e., it must be of such a nature, duration or amount as to constitute unreasonable interference with the use and enjoyment of the land.'" (Mendez v. Rancho Valencia Resort Partners, LLC (2016) 3 Cal.App.5th 248, 262-63 [internal citations and quotations omitted].)

The Cross-Complaint alleges that the Nists caused a nuisance by repeatedly blocking roads, bridges, and easements necessary for Farrell to travel to and from her home. (XC at ¶ 22.) The Cross-Complaint further alleges that Cross-Defendants used bolt cutters to cut locks on fences and replaced them with their own locks (*id.* at ¶ 22), erected fences across the road leading to the property (*id.* at ¶ 24), and blocked Co-Owners access to the roads and the bridge on their Property with their vehicles (*id.* at ¶ 25.)

These allegations are sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(5) interference with easement

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has failed to

state a claim.

To prevail on a claim for interference with easement, plaintiffs must plead and prove (1) the existence of a valid easement benefitting plaintiffs, and (2) conduct by defendants that unreasonably interferes with plaintiffs' use and enjoyment of the easement. (*Metzger v. Bose* (1957) 155 Cal.App.2d 131, 133.)

The Cross-Complaint alleges that (1) Farrell has an easement on the land of Cheryl Morgan for ingress and egress to the Property (XC at ¶ 61), and that (2) Cross-Defendants unreasonably obstructed and interfered with Farrell's use of the easement to access the Property by blocking such easement through fences, vehicles, threats, and other means. (*id.* at 61.)

These allegations are sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(6) negligence

Cross-Defendants demur to Cross-Complainant's cause of action for negligence on the grounds that it fails to allege facts sufficient to state a cause of action against the Nists and there is a misjoinder of parties.

The elements of a negligence cause of action are a legal duty owed by the defendant to the plaintiff to use due care, breach of that legal duty, causation, and injury to the plaintiff. (*Holmes v. Summer* (2010) 188 Cal.App.4th 1510, 1528.) The existence of a legal duty is a question of law for the court. (*Id.* at p. 1518.)

As a threshold issue, the Cross-Complaint does not allege a contractual relationship between Farrell and the Nists. And, as the Court noted in a prior order in the underlying action, relief under negligence requires that the defendant owe a duty to the plaintiff "that is 'assumed by the defendant or imposed on the defendant as a matter of law, or that arises out of a relationship between the two.' [Citation.]" *Plotnik v. Meihaus* (2012) 208 Cal. App. 4th 1590, 1608 [quoting *Burgess v. Sup. Ct.* (1992) 2 Cal. 4th 1064, 1073].) The relationship between the parties (adjoining property owners) does not appear to fall within the types of preexisting relationships which give rise to a duty of care. (See *Sher v. Leiderman* (1986) 181 Cal.App.3d 867, 884 ["[m]ere ownership of adjoining lots, however, does not give rise to a heightened duty of care[.]".])

The demurrer to this cause of action is **sustained**, with leave to amend.

(7) negligence (tort of another)

Under the tort of another doctrine, "[a] person who through the tort of another has been required to act in protection of his interests by bringing or defending an action against a third person is entitled to recover compensation for the reasonably necessary loss of time, attorney's fees, and other expenditures thereby suffered or incurred." (*Prentice v. North American Title Guaranty Corp.* (1963) 59 Cal.2d 618, 620.) It is an independent claim where the attorney's fees are an element of compensatory damages that occurred as a result of the violation of some tort duty between the tortfeasor and the plaintiff seeking damages under the doctrine. (*Sooy v. Peter* (1990) 220 Cal. App. 3d 1305, 1310.)

For the same reasons as discussed above (failure to allege duty of care), the Court **sustains** the

demurrer to this cause of action, with leave to amend.

(8) trespass to chattels

Although the Nists challenge Farrell's trespass to chattel's cause of action in their notice of Demurrer, their memorandum of points and authorities contains no argument in support of their challenge to this claim. Accordingly, the Demurrer is **overruled**.

(9) unjust enrichment

Cross-Defendants demur to the cause of action for unjust enrichment on the grounds that it fails to allege specific facts showing how Cross-Defendants were unjustly enriched at Cross-Complainant's expense. The Court notes that, as with much of Cross-Defendant's memorandum of points and authorities, there is no citation to authority.

"[T]he elements for a claim of unjust enrichment [are]: receipt of a benefit and unjust retention of the benefit at the expense of another. [Citation.]" (*Lectrodryer v. SeoulBank* (2000) 77 Cal.App.4th 723, 726; see also *Ghirardo v. Antonioli* (1996) 14 Cal.4th 39, 50 [in accord].)

The Cross-Complaint alleges that "[a]lthough Unlicensed Contractors and Roes 1-50 were hired to perform work for the benefit of Co-Owners, Unlicensed Contractors and Roes 1-50 did not perform work for the benefit of Co-Owners and instead performed work for their own and the Nists' benefit." (XC at ¶ 18.) That is sufficient at this stage of the proceedings. The Demurrer to this cause of action is **overruled**.

(10) unlawful business practices (Bus. & Prof. Code § 17200)

Cross-Defendants demur to this cause of action on the grounds that the Business and Professions Code does not apply to Cross-Defendants and has misjoinder of party. In opposition, Cross-Complainant contends that an unlawful business activity includes performing unpermitted modifications to structures and failing to comply with local codes. (Opp. at 6:7-12 [citing *People v. McKale* (1979) 25 Cal.3d 626, 632; *Olszewski v. Scripps Health* (2003) 30 Cal.4th 798, 827; and *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 928.]) She also argues that her allegations of violations of local code and State law "render the actions of the Nists unlawful business practice under Business & Professions Code sections 17200." (Opp. at 6:22-24.)

While true that "[a]n 'unlawful business activity' includes 'anything that can properly be called a business practice and that at the same time is forbidden by law.'" " (People v. McKale, supra, at 632), it is also the case that the Cross-Complaint is bereft of allegations which would form the basis for a claim of unlawful business activity on the part of the Nists. While the opposition references local codes and State law, there are no references to such predicate statutory violations in the Cross-Complaint.

The Demurrer to this cause of action is **sustained**, with leave to amend.

(11) contribution

Cross-Defendants demur to this cause of action on the grounds that Cross-Complainant has again failed to state a claim. The demurrer makes the same arguments to the contribution cause of action

as the indemnity cause of action.

Equitable indemnity and contribution are similar to one another in that each cause of action is a mechanism for shifting liability among wrongdoers who are liable to the same person for the same loss. However, a contribution cause of action “can come into existence *only after rendition of a judgment* declaring more than one defendant jointly liable to the plaintiff.” (*Coca-Cola Bottling Co. v. Lucky Stores, Inc.* (1992) 11 Cal.App.4th 1372, 1378 [italics added] [contribution “requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment”].)

Here, there has been no rendition of a judgment; as such, this cause of action is premature. For this reason, the demurrer to this cause of action is **sustained**.

(12)equitable indemnity

Cross-Defendants demur to Cross-Complainant’s equitable indemnity cause of action on the grounds that Cross-Complainant “fail[s] to allege specific facts showing how Cross-Defendants are liable to indemnify Cross-Complainant for any damages that may be awarded to Plaintiffs in the underlying action.” (Dem. at 6:17-19.) In opposition, Cross-Complainant argues that “Farrell properly alleges that the Nists are liable for the damages they assert because they caused the damages themselves.” (Opp. at 7:13-14.)

“The elements of a cause of action for [equitable] indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting in damages to the indemnitee for which the indemnitor is ... equitably responsible.” (*Bailey v. Safeway, Inc.* (2011) 199 Cal.App.4th 206, 217.) “To state a claim for equitable indemnity, a defendant must allege the same harm for which he may be held liable is properly attributable—at least in part—to the cross-defendant.” (*Platt v. Coldwell Banker Residential Real Estate Services* (1990) 217 Cal.App.3d 1439, 1445, fn.7.)

“The right to indemnity flows from payment of a joint legal obligation on another’s behalf.” (*Bailey v. Safeway, Inc.*, *supra*, 199 Cal.App.4th at p. 212.)

Here, Farrell has not alleged a joint legal obligation with the Nists. Rather, Farrell alleges that “[t]he Nists’ claims in the related Complaint against Farrell arise from the actions, conduct, and omissions of Cross-Defendants, and each of them, as alleged above and herein, and not from the actions conduct, and omissions of Farrell.” (XC at ¶ 109.) Given that the Nists themselves are Cross-Defendants, this allegation is both internally inconsistent and inconsistent with the legal theory of equitable indemnity.

The Demurrer to this cause of action is **sustained**, with leave to amend.

(13)comparative indemnity

Cross-Defendants challenge Cross-Complainants claim for comparative indemnity on the grounds that the Cross-Complaint “fail[s] to specific facts showing how Cross-Defendants are liable to indemnify Cross-Complainant for any damages that may be awarded to Plaintiffs in the underlying action.” (Dem. at 6:18-19.)

Comparative indemnity and apportionment of fault are remedies that apply to joint tortfeasors: “In any action for personal injury, property damage, or wrongful death, based upon principles of comparative fault, the liability of each defendant for non-economic damages shall be several only and shall not be joint. Each defendant shall be liable only for the amount of non-economic damages allocated to that defendant in direct proportion to that defendant’s percentage of fault, and a separate judgment shall be rendered against the defendant for that amount.” (Civ. Code § 1431.2, subd. (a).) “It is well-settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff’s injury.” (*Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group* (2006) 143 Cal.App.4th 1036.)

The Court’s confusion with respect to this cause of action arises primarily from the following paragraph of the Cross-Complaint:

Cross-Complainant contends that she is in no way legally responsible for the events giving rise to Plaintiffs’ causes of action, or legally responsible in any other manner for the damages allegedly sustained by Plaintiff. However, if as a result of the matters alleged in Plaintiffs’ operative Complaint, this Cross-Complainant is held liable for all or any part of the claim for damages asserted against it by Plaintiff, Cross-Defendants, and each of them, to the extent that their fault was a proximate cause of Plaintiff’s damages and/or losses, are responsible for said damages and/or losses in proportion to each Cross-Defendants’ comparative negligence and this Cross-Complainant is entitled to a determination of several liability

(XC at ¶ 119)

The Nists are both Plaintiffs and Cross-Defendants. The legal theory under which they would be held jointly liable with Farrell for their own damages in the underlying case is unclear, and Cross-Complainant has provided no authority in opposition that might inform the Court.

The Demurrer to the cause of action for comparative indemnity is **sustained**, with leave to amend.

(15) declaratory relief

Cross-Defendant argues that the declaratory relief action “fails to allege a present, actual controversy between the parties requiring judicial declaration.” (Dem. at 7:1-2.)

The elements of a cause of action for declaratory relief are: “(1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to rights or obligations of a party.” (*Childhelp, Inc. v. City of Los Angeles* (2023) 91 Cal.App.5th 224, 235; see also *Lee v. Silveira* (2016) 6 Cal.App.5th 527, 546; *Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410.)

Here, Cross-Complainant has alleged a controversy between the parties with the respect to her Property (see *supra*). The Demurrer to this cause of action is **overruled**.

14. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

*HEARING ON MOTION IN RE: STRIKE PORTIONS OF SHANNA FARRELL'S CROSS-COMPLAINT

FILED BY: NIST, WILLIAM G

TENTATIVE RULING:

Before the Court is Cross-Defendant William G. Nist and Mari K. Nist (collectively, "Cross-Defendants")'s motion to strike portions of the Cross-Complaint filed by Cross-Complainant Shanna M. Farrell ("Cross-Complainant"). Cross-Defendant seeks to strike the first, second, third, fourth, fifth, eighth, ninth, eleventh, twelfth, fourteenth, and fifteenth causes of action from the Cross-Complaint.

For the following reasons, the motion is **denied** for failure to comply with California Rule of Court, Rule 3.1322(a).

Analysis

CCP § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.)

As a threshold issue, the Motion fails to comply with California Rule of Court 3.1322(a) ("A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion to strike an entire paragraph, cause of action, count, or defense.").

Cross-Defendant's notice states that each challenged cause of action "contains irrelevant, false, or improper matter due to conclusory legal language and false posits of fact." However, the notice of motion does not quote in full the portions sought to be stricken as required by CRC Rule 3.1322(a).

Accordingly, the motion is **denied**.

15. 9:00 AM CASE NUMBER: N25-0942

CASE NAME: AMANA ENTERPRISE, LLC VS. ELLIE ROUHANI

*HEARING ON MOTION IN RE: AWARD OF ATTORNEY'S FEES AND COSTS

FILED BY: KATOUZI, ROOZBEH

TENTATIVE RULING:

Summary

Defendant Ellie Rouhani, Roozbeh Katouzi, and Super Tehran Market, LLC ("Defendants") Motion for Award of Attorney's Fees and Costs against Plaintiff Amana Enterprise, LLC ("Plaintiff") is **granted** as set forth herein.

Background

On October 24, 2025, Defendants filed a Motion for Award of Attorney's fees & costs to recover \$21,175 in fees and \$1,600 in costs for defending against an unlawful detainer lawsuit commenced on May 12, 2025 by Plaintiff. Defendants were prevailing parties in a successful demurrer to the complaint. In a contested hearing, the Court sustained Defendants' Demurrer without Leave to Amend on October 8, 2025 on the grounds that notice was legal defective.

Now, Defendants request attorney's fees and costs as prevailing party pursuant to California Code of Civil Procedure sections 1032(a)(4) and 1033.5(a)(10), and California Civil Code section 1717(a), on the grounds that Defendants are the "prevailing party" pursuant to the contractual attorney's fees provision in the Commercial Lease Agreement between Plaintiff and Defendant, and are entitled to an order for attorney fees in a reasonable amount as an item of recoverable costs of suit, in addition to other allowable costs of suit. Defendant's Motion is supported by Notice, Memorandum of Points and Authorities, Declaration of Counsel Sherri S. Shafizadeh. The proof of service form evidences service on Plaintiff's counsel by mail and electronic service on October 24, 2025. Plaintiff did not file a timely opposition with the Court.

Analyses

1. Defendants are Prevailing Parties

California Civil Code § 1717(a) authorizes a "prevailing party" to recover an award of reasonable attorney's fees in "any action on a contract" where the contract specifically provides for recovery of attorney's fees. (Cal. Civ. Code § 1717.) California Code of Civil Procedure § 1032(a)(4) defines a "Prevailing party" as "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant."

If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034." (Cal. Code Civ. Proc. § 1032(a)(4)).

Further, Section 1032(b) states that "a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Cal. Code Civ. Proc. § 1032(b).) California Code of Civil Procedure section 1033.5(a)(10) defines "costs" as attorney's fees when authorized by contract or statute. (Cal. Code Civ. Proc. § 1033.5(a)(10).) Applied here, the Court finds that the Defendants are prevailing party in this unsuccessful unlawful detainer action.

2. Non Opposition by Plaintiff

Pursuant to Cal. Code of Civ. Proc. § 1005(b), "all papers opposing a motion shall be filed with the court and copy served on each party at least nine court days... before the hearing." Nine court days before the hearing is January 29, 2026. No timely opposition was filed by Plaintiff.

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253,

257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is “well-within” the court’s discretion to determine that such failure is “tantamount to a concession that its position in the litigation was not substantially justified.”] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that Plaintiff’s failure to timely oppose this motion is deemed to be its consent to the granting of this motion for attorney’s fees and costs.

3. Defendant’s Fees and Costs are Reasonable

In reviewing the costs and fees incurred, the Court considered the *Lodestar* factors, the experience of counsel, the amount of time incurred in defending against this case, and in prosecuting the demurrer. In doing so, the Court finds that Counsel Shafizadeh’s hourly rate of \$500.00 per hour, given her experience of nearly 30 years, and the amount of time spent on behalf of her clients in defending against this unlawful detainer action, are appropriate. Accordingly, the Court finds that amount of fees requested, \$21,175, are reasonable. The costs in the amount of \$1,600 as set forth in the Memorandum of Costs are reasonable.

Ruling

Defendant Ellie Rouhani, Roozbeh Katouzi, and Super Tehran Market, LLC (“Defendants”) Motion for Award of Attorney’s Fees and Costs against Plaintiff Amana Enterprise, LLC (“Plaintiff”) is **granted**. Plaintiff Amana Enterprises LLC shall pay attorney’s fees in the amount of \$21,175 and costs in the amount of \$1,600 no later than thirty (30) days from the date of this hearing. The Court will execute the proposed form of order lodged by Defendants on October 24, 2025.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C25-00779
CASE NAME: PAWAN GARG VS. BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S DEPOSITION AND REQUEST FOR MONETARY SANCTIONS**

FILED BY: BMW OF NORTH AMERICA, LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

Summary

Defendant BMW of North America, LLC (“Defendant” or “BMW”) filed a Motion to Compel Plaintiff Pawan Garg’s (“Plaintiff”) Deposition and for Sanctions in the amount of \$2,280 is **granted**.

Background

This is a Lemon Law case. On March 19, 2025, Plaintiff filed a Complaint alleging Breach of Express Warranty and Breach of Implied Warranty in violation of the Song-Beverly Act. Plaintiff alleged that on or about November 19, 2023, Plaintiff leased a 2024 BMW i5, which continues to exhibit defects in violation of the Song-Beverly Act.

On May 15, 2025, BMW served the Notice via electronic service confirming the date of July 10, 2025 for Plaintiff's Deposition. (Hurvitz Decl., ¶ 4.) On July 7, 2025, Plaintiff filed an objection to the taking of their deposition. (Id. at ¶ 5.)

On July 7, 2025, Plaintiff served objections to Defendant's unilateral Notice of Deposition, and the corresponding Requests for Production of Documents. Plaintiff's objections requested Defendant to meet and confer in order to schedule Plaintiff's deposition on a mutually agreeable date.

On July 8, 2025, BMW contacted Plaintiff seeking alternative dates for deposition, and subsequently contacted Plaintiff regarding the same on July 24, 2025, and August 6, 2025. Following the parties' subsequent communications, the parties agreed to schedule Plaintiff's deposition for February 3, 2026. Given Plaintiff's willingness to proceed on that agreed-upon date, Plaintiff's counsel's office contacted Defendant's counsel on January 28, 2026, to inquire whether Defendant would withdraw the pending motion. Defendant's counsel responded that Defendant would not withdraw the motion unless and until Plaintiff's deposition was completed.

On September 17, 2025, BMW filed a Motion to Compel Plaintiff's Deposition and for Sanctions in the amount of \$2,280. The Motion is made on the grounds that Plaintiff has failed to meet and confer and has not made himself available to provide her deposition testimony under oath.

On January 29, 2026, Plaintiff filed an Opposition setting forth the history of attempts to meet and confer with BMW's counsel to set-up a date for Plaintiff's deposition. On February 3, 2026, BMW submitted a reply brief contesting the representations about the dates on which the Parties attempted to schedule the deposition of Plaintiff. According to BMW, on January 29, 2026, at 3:01p.m. Plaintiff offered the date of March 19, 2026, for Plaintiff's Deposition with no context. On February 2, 2026, Plaintiff's Counsel confirmed the agreed deposition was no longer taking place. According to BMW's counsel, Plaintiff failed to serve objections to the agreed deposition date of February 3, 2026.

Analyses

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden,

expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Moreover, the grounds set forth in Cal. Code of Civ. Proc. § 2025.450 states that ; When a motion to compel attendance at a deposition is granted, the court “**shall** impose a monetary sanction (Section 2025.450(g)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

Here, the Court finds that substantial evidence supports findings that Plaintiff and his counsel failed to submit to an authorized method of discovery, failed to meet and confer in a reasonable good faith attempt to set a deposition date, and engaged in conduct that is a misuse of the discovery process. For several months, he ignored BMW’s attempts to reschedule Plaintiff’s deposition until being served with the motion to compel. Counsel’s refusal to participate in making his client available for a rescheduled deposition and for failing to object to a Notice of Deposition is a sufficient basis for sanctions. (*Ellis v. Toshiba America Information Systems, Inc.* (2013) 218 Cal.App.4th 853, 877-878 [sanctions warranted where moving party “repeatedly attempted” discussions and sanctioned party “did not reciprocate in a constructive fashion”])

From the record, the Court finds that the deposition of Plaintiff has not yet taken place in the seven (7) months since the deposition had been noticed. The meet and confer efforts fail to result in the Deposition of Plaintiff, denying BMW of its right to conduct any meaningful discovery by way of deposition. The Court finds, under these circumstances, that Plaintiff and his counsel engaged in misconduct and engaged in efforts to delay and hinder BMW from pursuing testimony likely to lead to the discovery of admissible evidence about his claims under the Song-Beverly Act. Such misconduct warrants sanctions under Cal. Code of Civ. Proc § 2023.010 (e),(f) and (i). Sanctions are also warranted under Cal. Code of Civ. Proc. § 2025.450(g)(1).

Ruling

1. Defendant BMW of North America, LLC (“Defendant” or “BMW”) filed a Motion to Compel Plaintiff Pawan Garg’s (“Plaintiff”) Deposition and for Sanctions in the amount of \$2,280 is **granted**.
2. Plaintiff shall make himself available for deposition no later than 30 days from the date of this order. The deposition of plaintiff shall take place starting no earlier than 9:00 a.m. in the morning and shall last at no more than six hours per day in duration, and shall continue from day-to-day, except for Court holidays and weekends, until completed. Failure to follow this order may result in the imposition of terminating sanctions and may result in contempt proceedings against Plaintiff’s counsel.
3. Sanctions are due and payable, joint and severally, by Plaintiff Pawan Garg and his counsel, Quill and Arrow, LLP, and shall be paid no later than ten (10) days from the date of this hearing.
4. Counsel for BMW shall prepare a proposed order conforming to this ruling and e-file with the

Court no later than five (5) days from the date of this hearing.

17. 9:01 AM CASE NUMBER: C23-02459

CASE NAME: KYLE GARDNER VS. MARIO MADRIGAL

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF KYLE R. GARDNER TO APPEAR AT PHYSICAL INDEPENDENT MEDICAL EXAMINATION WITH STEVEN MCINTIRE, MD
FILED BY: MADRIGAL, MARIO VALENCIA**

TENTATIVE RULING:

Summary

Defendant Mario Valencia Madrigal ("Defendant") Motion to Compel Plaintiff Kyle Gardner ("Plaintiff") to attend and appear at an Independent Medical Examination ("IME") with Steven McIntire, MD for a neurological examination is **granted** in part and **denied** in part as set forth herein.

Background

This case involves a motor vehicle accident that occurred on October 13, 2021 wherein a motorcycle operated by Plaintiff Kyle R. Gardner, and another vehicle driven by Defendant Mario O Valencia Madrigal collided. As a result of the incident, Plaintiff reported experiencing pain in his left shoulder, elbow, wrist, knee, hip, and ankle, as well as a laceration to his left shin. Plaintiff is also claiming he sustained a concussion, resulting in symptoms such as confusion, forgetfulness, dizziness, and headaches. Plaintiff asserts a claim for damages related to these neurological injuries.

On May 30, 2025, Defendant served Notice of an IME for Plaintiff with Steven McIntire, M.D., who is a neurologist. Plaintiff, through counsel, objected to the examination. Counsel met and conferred.

On October 22, 2025, Defendant Mario Valencia Madrigal ("Defendant") filed this Motion to Compel Plaintiff Kyle Gardner ("Plaintiff") to attend and appear at an Independent Medical Examination with Steven McIntire, MD for a neurological examination. The Motion is supported by a Notice, Memorandum of Points and Authorities, Declaration of Dr. McIntire and Counsel Callie Tyler.

Defendant seeks to compel a neurological examination of Plaintiff pursuant to Cal. Code of Civ. Proc. § 2032.310(a). Plaintiff, who was allegedly injured in a motor vehicle accident, claims that he sustained a concussion, resulting in symptoms such as "confusion, forgetfulness, dizziness and headaches." After meeting and conferring over objections, the following issues remain to be resolved: (1) Plaintiff's objection to Dr. McIntire asking and taking a detailed medical history of Plaintiff regarding Plaintiff's injuries; and (2) the request that both parties may audio record under the condition that Plaintiff be allowed to videotape the examination.

On January 29, 2026, Plaintiff filed an opposition to the Motion, self-styled, "Opposition to Defendant's Motion to Compel Impermissible Communication with Represented Party ." Plaintiff objects to conducting an "oral examination" or "oral history," asserting that such examination is not contemplated by the Discovery Act in an independent medical examination, which, in this case is a mental examination.

In reply filed on February 2, 2026, Defendant claims that an examination necessarily requires that a

medical professional take the history of a patient relevant to the complaint.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to Independent Medical Examinations, pursuant to Cal. Code of Civ. Proc. § 2032.220(a) states, "In any case in which a plaintiff is seeking recovery for personal injuries, any defendant may demand one physical examination of the plaintiff, if both of the following conditions are satisfied: (1) The examination does not include any diagnostic test or procedure that is painful, protracted, or intrusive [and] (2) The examination is conducted at a location within 75 miles of the residence of the examinee.

Cal. Code of Civ. Proc. § 2032.250(a) provides, in relevant part:

"If a defendant who has demanded a physical examination under this article, on receipt of the plaintiff's response to that demand, deems that any modification of the demand, or any refusal to submit to the physical examination is unwarranted, that defendant may move for an order compelling compliance with the demand. This motion shall be accompanied by a meet and confer declaration under Section 2016.040."

Medical History

Plaintiff's objection to Dr. McIntire's examination of Plaintiff, including taking an oral history, is not fully supported by the decisional authority or the Discovery Act. The case law allows an examining professional to take a medical history of the patient that is related to the alleged claim of injuries which resulted from the incident. See *Sharff v. Superior Court* (1955) 44 Cal.2d 508, 511 and *Golfland Entertainment Centers, inc. v. Superior Court* (2003) 108. Cal.App.4th 739, 745-746. This authority applies squarely to this case.

Plaintiff's attempt to characterize a medical doctor's taking of a routine medical history as a deposition under the Discovery Act or as an impermissible communication with a represented party is also not supported by applicable decisional authority. Plaintiff's limited and narrow interpretation as such would result in preventing a trained medical examiner from obtaining facts necessary to perform a reasonable medical examination. Neither the statutes nor the decisional authority prohibits a medical doctor from taking the medical history of plaintiff, especially where Plaintiff makes a claim that he may have suffered neurological injuries from the accident that occurred nearly five years ago. Counsel's argument in support of this position is unavailing. Moreover, the declaration of Dr. McIntire states that if he is prevented from taking a medical history of Plaintiff, it would "limit his ability to formulate an intelligent opinion regarding the nature and extent of Plaintiff's injuries" (Declaration, paragraph 8).

Dr. McIntire also states that "Neurology diagnoses and diagnostic codes are not only based on physical examination findings, but also on the specifics of an examinee's symptoms from a claimed injury, and the evolution of such symptoms. Frequently, such essential medial history, descriptions of symptoms, and chronicles of the evolution of symptoms are not included in existing medical records, discovery responses, or deposition transcripts."

The argument that Cal. Code of Civ. Proc. § 2032.220 does not allow an expert to communicate with a represented party is also without legal support. Plaintiff misinterprets *Golfland, supra*, which allowed the physician to take a medical history that bears on psychiatric and mental matters for an examination. In its holding, the Court of appeal ruled that the trial court was **not** permitted to **limit** the neuropsychologist's questioning of the son's psychiatric condition, and to the extent that the order accomplished this end, it was an abuse of discretion. Under the reasoned opinion of Dr. McIntire and pursuant to the holding in *Golfland*, Plaintiff's objection is **overruled**.

Audio and Videotape of IME

Cal. Code of Civ. Proc. § 2032.510(a) permits the attorney for plaintiff to attend and observe any physical examination and to "record... by audio technology any words spoken to or by the examinee during any phase of the examination." The observer may monitor the examination, but shall not participate in or disrupt it. Section 2032.510(b).

Plaintiff's request to "videotape" the proceedings is inconsistent with the plain wording of Section 2032.510(a), which only permits recording by audio technology or court stenographer. As such, this request is denied. Plaintiff, however, may record the IME provided that he record any and all words spoken to or by the examinee during any phase of the examination pursuant to statute, and so long

as he does not participate or disrupt the examination.

Ruling

Defendant Mario Valencia Madrigal (“Defendant”) Motion to Compel Plaintiff Kyle Gardner (“Plaintiff”) to attend and appear at an Independent Medical Examination (“IME”) with Steven McIntire, MD for a neurological examination is **granted** in part and **denied** in part as set forth herein.

1. Plaintiff’s two objections to the independent medical examination are **overruled**.
2. Plaintiff is ordered to undergo an IME / mental examination with Dr. Steven McIntire, and is ordered to appear at a mutually available date and time no later than thirty days from the date of this order. The examination shall take place in Dr. McIntire’s office and shall be within 75 miles of Plaintiff’s home, and shall continue from day-to-day until complete, and shall not take longer than eight (8) hours over two consecutive days.
3. Dr. McIntire is permitted to take the medical history of Plaintiff, including any history of past neurological or physical injuries that preceded the subject incident and that resulted from the subject incident.
4. Plaintiff’s counsel may be present at the examination in accordance with Section 2032.510(a) and may audio record the entire examination. However, Plaintiff’s counsel may not video record the proceedings and may not interfere with the neurological examination.
5. Counsel shall meet and confer and take necessary and proper steps to implement this order forthwith.
6. Defendant’s counsel is ordered to prepare a proposed order that conforms to the ruling, attaching a copy of this tentative ruling no later than five (5) court days from the date of this hearing.

18. 9:01 AM CASE NUMBER: C23-02118
CASE NAME: LISA MALEK-ZADEH VS. WEST COUNTY WASTEWATER DISTRICT
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER DEPOSITION RESPONSES FROM**
DEFENDANT WEST COUNTY WASTEWATER DISTRICT
FILED BY: MALEK-ZADEH, LISA
TENTATIVE RULING:

Summary

Plaintiff Lisa Malek-Zadeh (“Plaintiff”) Motion to Compel Further Deposition Responses from Director Cheryl Sudduth of Defendant West County Wastewater District (“Defendant” or “District”) is **granted** in part as set forth herein.

Background

In this case, Plaintiff alleges that she was employed by the West County Wastewater District, a public agency, from 2016 until March 7, 2023. In early 2018, the District’s Board of Directors appointed Plaintiff as the Interim General Manager until December 2018, when she was hired as the permanent General Manager. Plaintiff then alleges that the Board of Directors had wrongfully terminated her on March 7, 2023.

On August 21, 2025, Plaintiff started the deposition of District Director Cheryl Sudduth. In that deposition, the District's Counsel objected to any questions asked of Director Sudduth that concerned the performance evaluation of the Plaintiff that occurred in a closed session meeting on November 17, 2022.

On November 4, 2025, Plaintiff Lisa Malek-Zadeh ("Plaintiff") filed a Motion to Compel Further Deposition Responses from Defendant West County Wastewater District ("Defendant" or "District"). The Motion was accompanied by a Memorandum of Points and Authorities, Declaration of Counsel Robert Salinas, Declaration of Plaintiff, and a Separate Statement.

The Motion seeks to compel further responses to deposition questions related to questions which were asked of Deponent Cheryl Sudduth on August 21, 2025 pertaining to matters that occurred in the closed session meeting of the Board of Directors on November 17, 2022 pertaining to the public employee performance evaluation of the Plaintiff.

The Motion also seeks further deposition testimony presumably of Director Sudduth pertaining to closed sessions for Plaintiff's performance evaluations conducted on December 19 and 21, 2022 and February 10, 2023, and on March 6, 2023. These questions were not asked and a record is absent any specific questions that were asked and objected to regarding the closed sessions for these dates.

On January 19, 2026, the District filed an opposition to the Motion, asserting, generally, rules that govern closed session meetings of a local government body under the Ralph M. Brown Act., Gov. Code § 54950, et. seq. The District advances arguments that closed session meetings are strongly inferred to be confidential, and may only be disclosed via (1) in camera review where there is an alleged violation of the Brown Act, or (2) in camera review and disclosure of a tape recording of a closed session where there exists a prior judgment that the agency held an unlawful closed sessions, and the court ordered to make tape recordings. Even so, such closed session discussion must be kept in confidence. The District advances other arguments which the Court has considered here.

In reply, Plaintiff claims that the District waived any claim of attorney-client privilege over any of the agendized closed session performance evaluations for Plaintiff. Plaintiff also claims that the District misstates the November 17, 2022 closed sessions, engaged in protected conduct and activity, and generally asserts that the protections of the Brown Act must yield to public policies underpinning this Fair Employment and Housing Act claim. The Court considers the positions of both parties in making this ruling.

Objection

The Court sustains the District's objection to the Plaintiff's Declaration, Paragraph 12 on the grounds that she may not waive confidentiality of the contents of a closed session meeting pursuant to Gov. Code § 54963(a). Only the District's governing body may do that. Paragraph 12 of Plaintiff's Declaration is stricken.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any

party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Motions to compel further answers to deposition questions are governed by Cal. Code of Civ. Proc. § 2025.480, which states that if a deponent fails to answer any question.... The party seeking discovery may move for the court for an order compelling that answer." Moreover, Cal. Code of Civ. Proc. § 2025.480(i) states, "If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition." Subsection 2025.460(a) states that "The protection of information from discovery on the ground that it is privileged or that it is a protected work product under Chapter 4 (commencing with Section 2018.010) is waived unless a specific objection to its disclosure is timely made during the deposition.

In balancing the Plaintiff's right to discovery of facts that may lead to the discovery of admissible evidence, with a public agency's compliance with the open meeting provisions of the Ralph M. Brown Act ("Brown Act"), Gov. Code § 54950, et. seq, the Court takes notes that the Brown Act requires the governing boards of local agencies to conduct their business in public meetings, except as authorized by statute. The Brown Act provides certain exceptions to this public meeting requirement. If a board takes measures conforming to certain procedural requirements, it is permitted to hold a closed meeting, as relevant here, "to consider the appointment, employment, evaluation of performance, discipline, or dismissal of a public employee" Section 54957. " It is also permitted to conduct a closed session to discuss the discipline, dismissal or release of a public employee. Section 54957.6.

[T]he underlying purposes of these 'personnel exceptions' are to protect the employee from public embarrassment and to permit free and candid discussions of personnel matters by a local governmental body. [W]e must construe [it] narrowly and the 'sunshine law' liberally in favor of

openness [citation]. . . ." (*San Diego Union v. City Council* (1983) 146 Cal. App. 3d 947, 955 "[T]he Legislature has drawn a reasonable compromise, leaving the majority of personnel matters to be discussed freely and candidly in closed session, but permitting an employee to request an open session to defend against specific complaints or charges brought against him or her by another individual and thus to clear his or her name." (*Bell v. Vista Unified School Dist.* (2000) 82 Cal. App. 4th 672, 682. In addition, boards are not permitted to meet in closed session to discuss or take action "on proposed compensation" of a public employee, "except for a reduction of compensation that results from the imposition of discipline." (§ 54957.) citing to *Duval v. Board of Trustees* (2001) 93 Cal. App. 4th 902, 908-909.

Additionally, In *Kleitman v. Superior Court* (1999) 74 Cal.App.4th 324, the plaintiff, Wesley, brought an action alleging Brown Act violations based on closed sessions whose content allegedly exceeded the agenda notice. Id. at 328. The *Kleitman* court found that although there was no express confidentiality of closed-session proceedings, it was strongly implied, due to the Brown Act procedures covering litigation over Brown Act violations and closed-session minutes. (Ibid., 74 Cal.App.4th at 332.) The court concluded that the agency could not be compelled to recount what was said in the closed session in order to determine if there was a Brown Act violation. (Ibid., 74 Cal.App.4th at 334-335.)

The Brown Act was amended in 2002 after *Kleitman* and *Duval* to add new Gov. Code § 54963, which now states:

(a) A person may not disclose confidential information that has been acquired by being present in a closed session authorized by Section 54956.7, 54956.8, 54956.86, 54956.87, 54956.9, 54957, 54957.6, 54957.8, or 54957.10 to a person not entitled to receive it, unless the legislative body authorizes disclosure of that confidential information.

(b) For purposes of this section, "confidential information" means a communication made in a closed session that is specifically related to the basis for the legislative body of a local agency to meet lawfully in closed session under this chapter.

In weighing the authorities presented, and based upon the facts presented by the parties in this case, the Court is not persuaded that the Brown Act's provisions, which relate to the conduct of a legislative body's requirement to hold open meetings, is sufficient to deny Plaintiff's right to obtain testimony from Director Sudduth about her performance evaluation, and the contents of the closed session. To do so would deprive Plaintiff of the right to discover facts that may lead to the discovery of admissible evidence in this wrongful termination case. However, the Court must be cautious about setting precedence that would render the statutory confidentiality of a closed session meaningless. In considering the foregoing, and to balance the competing interests of both Parties consistent with the law, the Court finds good cause to make the following ruling.

Ruling

1. Plaintiff's Motion to Compel further deposition testimony of Director Cheryl Sudduth is **granted** in part pursuant to Cal. Code of Civ. Proc. § 2025.480(i) subject to the conditions of this order. The District's objections based on the application of a privilege, or the operation of the Brown Act are **overruled**, except as set forth herein regarding the

procedures to maintain confidentiality of the testimony.

2. The District shall make available Director Sudduth for further deposition to answer questions which were subject of this motion no later than 30 days from the date of this order. The deposition of Director Sudduth shall occur day-to-day until completed, and shall start no earlier than 9:00 a.m. on weekdays, excepting Court holidays and weekends, and shall not exceed six (6) hours per day.
3. The scope of the deposition questions shall relate only to the closed session meetings pertaining specifically to the public employee performance evaluation, and public employee discipline/dismissal/Release or of Plaintiff held on November 17, 2022, November 30, 2022, December 19, 2022, December 21, 2022, February 10, 2023 and March 6, 2023.
4. The Court determines and orders that the testimony of Director Sudduth is **confidential** pursuant to Gov. Code § 54963(b) and shall not be disclosed to the public, or to any third party outside of this litigation, except as permitted by this Court. The Parties are ordered to meet and confer to prepare and e-file a stipulated protective order that prevents disclosure of the deposition testimony and related transcripts / video recordings of Director Sudduth except as necessary and proper for the prosecution of this case. Said protective order shall be e-filed with the court no later than thirty (30) days from the date of this order.
5. The Court orders that the deposition testimony and transcript of Director Sudduth shall be sealed pursuant to Rules of Court Rule Nos. 2.550 and 2.551. Counsel shall meet and confer and take all steps necessary and proper to implement this order.
6. Plaintiff's Counsel is directed to prepare and e-file an order conforming to this ruling, attaching the tentative ruling, no later than ten (10) court days from the date of this hearing, approved as to form by the District's Counsel.